

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 1
Honorable Shella Deen, Presiding**

Nancy Vasquez, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: September 17, 2026 TIME: 9:00 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8.E**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

LINE 4	24CV440635	Lan Lam v. ESS Prisa II, LLC	Motion to Compel Plaintiff's appearance at deposition Defendant ESS PRISA II, LLC's (erroneously sued as EXTRA SPACE STORAGE) motion for an order compelling Plaintiff Lan Lam to appear for her deposition within 20 days from the hearing of this motion. The motion is brought pursuant to Code of Civil Procedure § 2025.450(a) on the grounds that Plaintiff failed to appear for her properly noticed deposition on December 5, 2025. The motion was accompanied by an appropriate proof of service indicating electronic mail service and mail service to Plaintiff. Defendant requests in the alternative that the case be dismissed. The Court has the authority to compel Plaintiff's deposition considering her ongoing non-appearance. "If, after service of a deposition notice, a party to the action ... without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it . . . , the party giving notice may move for an order compelling the deponent's attendance and testimony" (Code Civ. Proc. § 2025.450(a).) Here, Plaintiff has failed to appear for her deposition on December 5, 2025. Plaintiff has not communicated in any way since May 2025, including not serving any objection or request for rescheduling. No opposition to the motion was filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. CRC Rule 8.54c. Failure to oppose a motion leads to the presumption that Plaintiff has no meritorious arguments. (See <i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal. App. 3d 481, 489.) Moving party meets its burden of proof. Good cause appearing, the motion is GRANTED. Plaintiff shall appear for her deposition at a code compliant location, within 20 days of this order, or on a date and location agreed between the parties. Defendant's request for dismissal of the case is DENIED. Moving party to prepare the formal order.
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LAW AND MOTION TENTATIVE RULINGS

LINE 5	24CV440808	Edgar Daniel Rios Alvarez et al. v. Target Corporation et al.	Motion to Compel (Subpoena) Scroll down to Line 5 for Tentative Ruling.
LINE 6	25CV464930	Wells Fargo Bank, N.A. v. Jaideep S. Pada	Motion for Summary Judgment Plaintiff Wells Fargo's motion is unopposed. Plaintiff gave notice of the motion on February 11, 2026. Any opposition was due to be filed on August 28, 2026, and no opposition was filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rules of Court, Rule 8.54(c); <i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410.) Where a responding party does not file an opposition to a motion for summary judgment, the moving party must still meet its initial burden of proof. (<i>Thatcher v. Lucky Stores, Inc.</i> (2000) 79 Cal.App.4th 1081, 1086-1087, <i>CDF Firefighters v. Maldonado</i> (2008) 158 Cal.App.4th 1226, 1239, fn. 2). A motion for summary judgment "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Code Civ. Proc., § 437c, subdivision (c)). Plaintiff has shown sufficient evidence to justify the grant of summary judgment in its favor; the motion for summary judgment is GRANTED. Plaintiff to prepare the formal order.
LINE 7	25CV477283	Shabana Pirani v. Comcast Cable Communications, LLC	Petition to Compel Arbitration Scroll down to Line 7 for Tentative Ruling.

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